

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling:

Motion to Strike MOOT.

In light of the court sustaining the demurrer as to the 5th Cause of Action Fraudulent Inducement, the motion to strike is moot.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2601127	SZYMCAK VS TENNIS VENTURES, LLC	DEMURRER ON COMPLAINT OF LEANNE SZYMCAK

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.)

A pleading may also be challenged as uncertain where it is “ambiguous and unintelligible.” (C.C.P., § 430.10(f).) Uncertainty demurrers are disfavored and strictly construed, and they lie only where the pleading is so incomprehensible that the defendant cannot determine what issues must be admitted or denied. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action Negligence/Negligence per se:

The elements of a negligence cause of action are: duty, breach, proximate or legal cause of injury to Plaintiff resulting from the breach, and damage to plaintiff. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) “Negligence per se” is not an independent tort, but rather an evidentiary doctrine codified at Evidence Code section 669. Under subdivision (a) of this section, the doctrine creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted. These latter two